

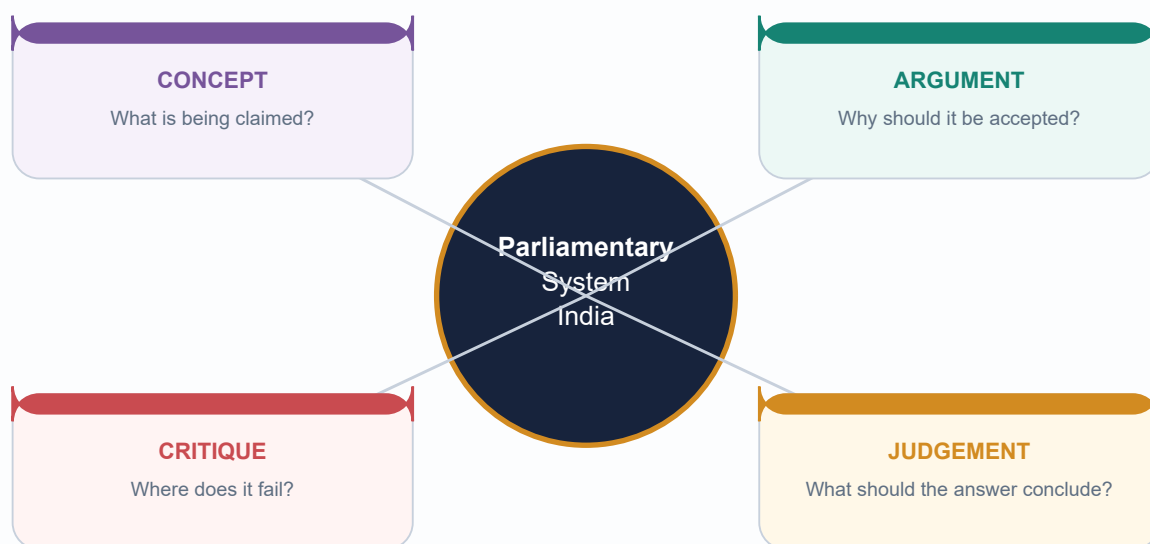
UPSC GS-II POLITY

Parliamentary System in India

Subject: Indian Polity | GS Paper: GS-II

Session-Level Learning PDF - Parliamentary System (Articles 74-75, 163-164)

Grounded in M. Laxmikant, Indian Polity Ch. 12 + verified current-affairs and PYQ anchors



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Constitutional Basis: Nominal vs Real Executive

GS-II Polity -
Parliamentary
System

NEWS TRIGGER

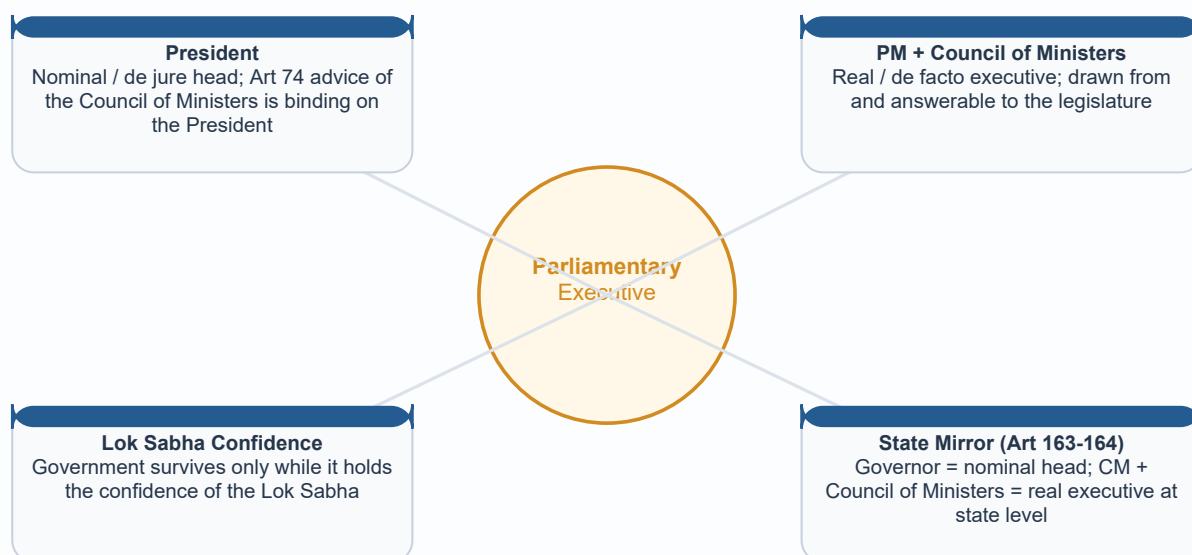
Recurring debates on shifting to a presidential system, and periodic 'one-nation-one-election' proposals, keep alive the question of whether India's executive should remain responsible to the legislature.

INTRO & ORIGIN

India adopts a parliamentary form of government at both the Centre (Articles 74 and 75) and the states (Articles 163 and 164). The system is classified by the relationship between executive and legislature: in a parliamentary system the executive is responsible to the legislature; in a presidential system it is not, and holds a fixed term.

Also called cabinet government, responsible government, or the Westminster model - the same family as Britain, Japan and Canada.

NOMINAL AND REAL EXECUTIVE



KEY DATA

Item	Fact
Articles	Centre: 74 and 75; States: 163 and 164
Also called	Cabinet / Responsible / Westminster government
Core test	Executive is responsible to the legislature
Model borrowed from	Britain (not a replica)

STATIC THEORY

- The real executive (PM + Council of Ministers) is drawn from and answerable to the legislature, and stays only while it holds the Lok Sabha's confidence.
- The President is the nominal head of state; the Prime Minister is the real head of government.
- Article 74 advice of the Council of Ministers is binding on the President after the 42nd and 44th Amendments.

MEMORY HOOK

Nominal signs, Real governs - President assents, PM decides.

MUST-KNOW FACTS

1. Ivor Jennings called it the 'cabinet system' - the cabinet is the nucleus of power.
2. Analysts such as Crossman and Mackintosh describe the modern reality as 'prime ministerial government' - true of India too.
3. The Prime Minister was once described as 'primus inter pares' (first among equals).

UPSC TRAPS

WRONG: The President's advice from the Council of Ministers is optional.

CORRECT: It is binding, per the 42nd and 44th Amendments to Article 74.

MAINS ANGLE

Has the growth of 'prime ministerial government' marginalised the collective character of the Cabinet envisaged under Article 75?

STUDY LINK

Cross-link 16_PM-and-Council-of-Ministers for cabinet/PM concentration and 17_Parliament for scrutiny correctives.

HIGH**2. The 8 Features of the Parliamentary System**

GS-II Polity -
Parliamentary
System

INTRO & ORIGIN

Laxmikant's Chapter 12 lists eight defining features that together mark out India's parliamentary form at the Union level.

KEY DATA

#	Feature	Detail
1	Nominal & real executives	President = nominal/de jure/titular; PM = real/de facto
2	Majority party rule	Majority party in Lok Sabha forms government; leader becomes PM; coalition if no single majority
3	Collective responsibility	Bedrock principle (Art 75); a no-confidence motion removes the whole ministry
4	Political homogeneity	Ministers usually share party/ideology; coalition ministries bound by consensus
5	Double membership	A minister must be an MP; ceases to hold office if not an MP for 6 consecutive months
6	Leadership of the PM	PM leads the Council of Ministers, Parliament, and the ruling party
7	Dissolution of the Lower House	President can dissolve the Lok Sabha on the PM's advice
8	Secrecy	Ministers take an oath of secrecy administered by the President

MEMORY HOOK

N-M-C-P-D-L-D-S = Nominal/real executives - Majority-party rule - Collective responsibility - Political homogeneity - Double membership - Leadership of PM - Dissolution of Lok Sabha - Secrecy.

MUST-KNOW FACTS

1. A minister who is not a Member of Parliament for six consecutive months ceases to hold office (double membership).
2. Ministers take an oath of secrecy administered by the President.

UPSC TRAPS

WRONG: A non-MP can never be appointed a minister.
CORRECT: A non-MP may be appointed, but must become an MP within six months.

MAINS ANGLE

Which of the eight features most directly explains executive dominance over Parliament in India today?

STUDY LINK

Cross-link 17_Parliament for how no-confidence motions and question hour operationalise these features.

HIGH**3. Collective Responsibility - the Bedrock (Art 75)**

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System

INTRO & ORIGIN

Collective responsibility under Article 75 is described as the bedrock principle of the parliamentary system - the Council of Ministers is jointly, not just individually, accountable to the Lok Sabha.

HOW COLLECTIVE RESPONSIBILITY OPERATES**STATIC THEORY**

- Collective responsibility (Art 75) is the bedrock of the parliamentary system: the whole ministry falls on a no-confidence motion in the Lok Sabha.
- The Council of Ministers is collectively responsible to the Lok Sabha, not the Rajya Sabha.

MEMORY HOOK

Swim and sink together - one motion, one fate for the whole ministry.

MUST-KNOW FACTS

1. The no-confidence motion is moved and decided only in the Lok Sabha.
2. Collective responsibility is the constitutional basis for Cabinet unity in public.

UPSC TRAPS

WRONG: The Council of Ministers is collectively responsible to the Rajya Sabha.

CORRECT: It is responsible to the Lok Sabha (Art 75).

MAINS ANGLE

Is collective responsibility diluted in coalition governments where consensus, not unanimity, binds ministers?

STUDY LINK

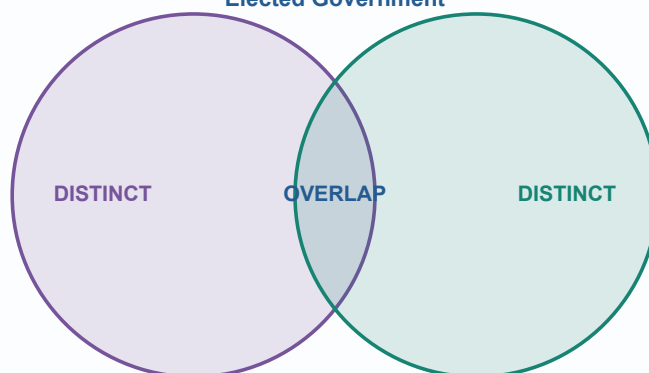
Cross-link 16_PM-and-Council-of-Ministers for how Cabinet unity is maintained in coalition arithmetic.

HIGH**4. Parliamentary vs Presidential System**

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INTRO & ORIGIN

The presidential system (USA) is the standard contrast used to test understanding of India's parliamentary form.

PARLIAMENTARY (INDIA) VS PRESIDENTIAL (USA)**Parliamentary - India****Elected Government****Presidential - USA****Parliamentary - India**

- Dual executive - nominal + real
- Fusion of powers
- Lower house can be dissolved
- Term not fixed - removable by no-confidence

Elected Government

- Executive answerable to a wider political/legal process
- Both permit judicial review of laws

Presidential - USA

- Single executive - the President
- Separation of powers
- House of Representatives cannot be dissolved
- Fixed 4-year term, removable only by impeachment

Executive-legislature fusion vs separation is the defining fault-line.

KEY DATA

Aspect	Parliamentary	Presidential
Executive	Dual (nominal + real)	Single
Term	Not fixed (removable)	Fixed
Responsibility	Responsible to legislature	Non-responsible
Membership	Double (minister must be MP)	Single (non-elected secretaries)
Dissolution of lower house	Yes	No
Powers	Fusion of powers	Separation of powers

STATIC THEORY

- In the US presidential system: the President is head of State and government; elected by an electoral college for a fixed 4-year term, removable only by impeachment.
- The US President governs through non-elected secretaries (the 'Kitchen Cabinet'), responsible only to him, and cannot dissolve the House of Representatives.

MUST-KNOW FACTS

1. The US model rests on the separation of powers; India's rests on fusion of powers.

UPSC TRAPS

WRONG: The parliamentary system is based on separation of powers.

CORRECT: It is based on fusion of powers between executive and legislature.

MAINS ANGLE

Presidential vs parliamentary: what suits India's plural society better?

STUDY LINK

Cross-link 15_President-and-Vice-President for how India's presidency differs from the US presidency in function.

HIGH**5. Why India Adopted the Parliamentary System**

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REASONS FOR CHOOSING THE PARLIAMENTARY MODEL**Why Parliamentary System?**

Ambedkar Preferred more responsibility over more stability	K.M. Munshi Familiarity with the British-era system - avoid a novel experience
Avoiding conflict Prevents legislature-executive conflict in an infant democracy	Plural society Wide representation suited to a heterogeneous society
Swaran Singh Committee 1975 Examined presidential vs parliamentary; recommended keeping the parliamentary system	

STATIC THEORY

- Ambedkar argued the US model gives more stability with less responsibility, while the British model gives more responsibility with less stability; India chose the responsibility side.
- The Swaran Singh Committee (1975) examined the presidential-vs-parliamentary question and recommended retaining the parliamentary system.

MUST-KNOW FACTS

1. K.M. Munshi's argument for familiarity: why 'buy a novel experience' when the system was already known from British rule.

UPSC TRAPS

WRONG: The Swaran Singh Committee recommended shifting to a presidential system.

CORRECT: It recommended keeping the parliamentary system.

MAINS ANGLE

Was the choice of the parliamentary system in 1950 primarily one of continuity, or of considered constitutional design?

STUDY LINK

Cross-link 02_Making-of-the-Constitution for the Constituent Assembly debates on the executive model.

HIGH**6. Indian vs British Model - Three Differences**

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KEY DATA

Dimension	India	Britain
Head of State	Republican - elected President	Monarchical - hereditary King/Queen
Parliamentary supremacy	Parliament is NOT supreme - written Constitution, federalism, judicial review, Fundamental Rights bind it	Parliamentary sovereignty - Parliament is supreme
PM's house of membership	PM may be from either House	PM must be from the House of Commons

STATIC THEORY

• India borrowed the parliamentary model from Britain but is not a replica of it - the Westminster label describes family resemblance, not identity.

MEMORY HOOK

Same Westminster family, different constitutional spine - India's Parliament answers to the Constitution.

MUST-KNOW FACTS

1. India = 'republican' (elected President); Britain = 'monarchical' (hereditary).
2. Britain has parliamentary sovereignty; India's Parliament is NOT supreme.

UPSC TRAPS

WRONG: The Indian Prime Minister must be a member of the Lok Sabha, like the UK's Commons rule.

CORRECT: The Indian PM may be from either House of Parliament.

MAINS ANGLE

Does the absence of parliamentary sovereignty in India strengthen or weaken the parliamentary system's accountability function?

STUDY LINK

Cross-link 03_Salient-Features for judicial review and the written Constitution as limits on Parliament.

HIGH

7. Merits and Demerits of the Parliamentary System

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KEY DATA

Merits	Demerits
Harmony between legislature and executive	Unstable governments - e.g. Morarji Desai, Charan Singh, V.P. Singh, Chandra Shekhar, Deve Gowda, I.K. Gujral
Responsible government - question hour, adjournment and no-confidence motions	No continuity of policies
Prevents despotism - authority vested in a group, not one person	'Dictatorship of the cabinet' (Laski; Ramsay Muir) - seen in the Indira/Rajiv era
Ready alternative government - Jennings: 'leader of opposition is the alternative PM'	Runs against separation of powers - Bagehot: 'cabinet is a hyphen that joins the executive and legislative'
Wide representation for a plural society	Government by amateurs

MUST-KNOW FACTS

- Jennings: 'the leader of the opposition is the alternative Prime Minister.'
- Bagehot described the cabinet as a 'hyphen' joining the executive and the legislature.

UPSC TRAPS

WRONG: Cooperative government by consensus was always the norm.

CORRECT: Instability across several short-lived ministries is a documented demerit of the system in India.

MAINS ANGLE

Do coalition-era correctives (pre-poll alliances, common minimum programmes) resolve the classic 'unstable government' demerit?

STUDY LINK

Cross-link 42_Anti-Defection-Law for how the Tenth Schedule addresses floor-test instability.

HIGH

8. Scholar Quotes and Terminology

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MEMORY HOOK

Jennings names the system; Bagehot names the hyphen; Laski names the danger.

WHO SAID WHAT - PARLIAMENTARY SYSTEM

Scholar / Term	Characterisation	Why It Matters
Ivor Jennings	'Cabinet system' - cabinet is the nucleus of power	Frames how real power concentrates in the Council of Ministers
Crossman & Mackintosh	'Prime ministerial government'	Marks the shift from cabinet collegiality to PM dominance
Bagehot	Cabinet is a 'hyphen' joining executive and legislature	Explains the fusion-of-powers critique
Laski / Ramsay Muir	'Dictatorship of the cabinet'	Warns against concentration of power in a dominant cabinet/PM
Jennings (on opposition)	'Leader of opposition is the alternative Prime Minister'	Frames the ready-alternative-government merit

MAINS ANGLE

Which scholarly characterisation best fits India's post-2014 single-party-majority phase - 'cabinet government' or 'prime ministerial government'?

STUDY LINK

Cross-link 16_PM-and-Council-of-Ministers for the constitutional powers underlying PM dominance.

HIGH**9. UPSC Traps - Parliamentary System (Consolidated)**

**GS-II Polity -
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MEMORY HOOK

Six traps, one theme: fusion, binding advice, and Lok Sabha - not Rajya Sabha - decide the ministry's fate.

MUST-KNOW FACTS

1. India = republican (elected President); Britain = monarchical (hereditary).
2. Jennings: 'the leader of the opposition is the alternative PM.'
3. Bagehot: the cabinet is a 'hyphen' joining the executive and legislature.

UPSC TRAPS

WRONG: The Council of Ministers is collectively responsible to the Rajya Sabha.

CORRECT: It is responsible to the Lok Sabha (Art 75).

WRONG: A non-MP can never be appointed as a minister.

CORRECT: A non-MP is allowed, but must become an MP within six months.

WRONG: The parliamentary system is based on separation of powers.

CORRECT: It is based on fusion of powers.

WRONG: The Indian PM must be from the Lok Sabha.

CORRECT: The Indian PM may be from either House, unlike the UK's Commons rule.

WRONG: The President's advice from the Council of Ministers under Article 74 is optional.

CORRECT: It is binding, per the 42nd/44th Amendments.

WRONG: The Swaran Singh Committee recommended a presidential system.

CORRECT: It recommended keeping the parliamentary system.

MAINS ANGLE

Use this consolidated trap list as a final accuracy check before attempting any parliamentary-system Prelims or Mains answer.

STUDY LINK

Revise alongside Module 2 (8 Features) and Module 4 (Parliamentary vs Presidential) before an exam attempt.

HIGH**10. CA Anchors and Verified PYQ Application**

**GS-II Polity -
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NEWS TRIGGER

Coalition instability and 'one-nation-one-election' debates periodically revive the presidential-vs-parliamentary question; frequent floor-tests and anti-defection cases keep collective responsibility and no-confidence motions topical.

KEY DATA

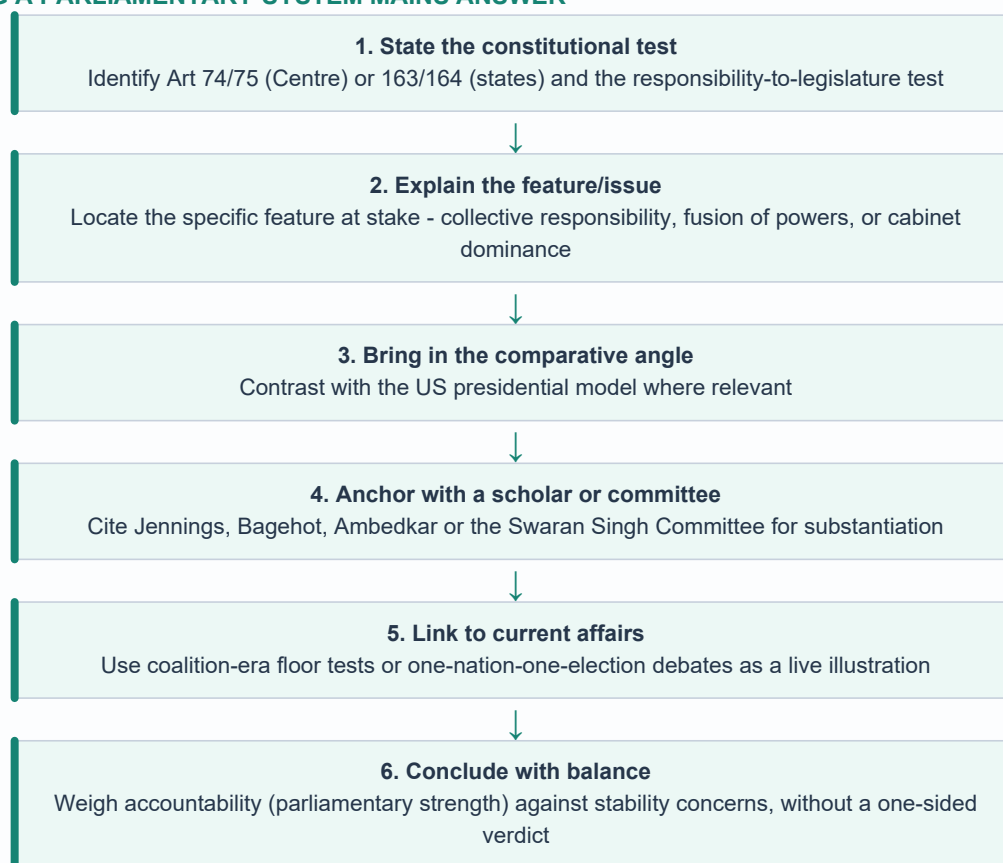
PYQ	Marks / Words	Answer Route
2024 GS-II Q3: 'The growth of cabinet system has practically resulted in the marginalisation of the parliamentary supremacy. Elucidate.'	10 marks / 150 words	Fusion of powers + party majority/whip + delegated legislation and agenda control -> weakened scrutiny; qualify with question hour, committees, no-confidence motions and judicially enforceable constitutional limits.
MAINS ANGLE <i>Frame answers on cabinet dominance by first conceding the marginalisation trend, then qualifying it with surviving parliamentary correctives.</i>		STUDY LINK Cross-link 16_PM-and-Council-of-Ministers for cabinet/PM concentration and 17_Parliament for scrutiny correctives.

HIGH

11. Mains Answer-Writing Framework

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BUILDING A PARLIAMENTARY-SYSTEM MAINS ANSWER



MAINS ANGLE

Is the parliamentary system responsible for governance instability in India, or has coalition-era maturity disproved it?

STUDY LINK

Use this framework for all Module 1-10 themes when converting them into a 10- or 15-mark GS-II answer.